

**** Laws of Citizens in India ****

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The legal framework governing citizenship in India is primarily outlined in the Constitution of India and the Citizenship Act of 1955. The Constitution, in Part II (Articles 5-11), defines who was considered a citizen at the time of its commencement on January 26, 1950. It laid down the initial criteria for citizenship based on domicile, migration from Pakistan, and registration of persons of Indian origin residing abroad.

The Citizenship Act, 1955, was enacted by the Parliament under the authority of Article 11 of the Constitution. This Act provides for the acquisition and termination of citizenship after the commencement of the Constitution. The Act has been amended several times, most notably in 1986, 1992, 2003, 2005, and 2019.

There are four primary ways to acquire Indian citizenship as per the Citizenship Act, 1955:

1. ****By Birth (Jus Soli):**** - A person born in India on or after January 26, 1950, but before July 1, 1987, is a citizen by birth, irrespective of the nationality of their parents. - A person born in India on or after July 1, 1987, is a citizen only if either of their parents was a citizen of India at the time of their birth. - For those born on or after December 3, 2004, a person is a citizen by birth if both parents are citizens of India, or one parent is a citizen and the other is not an illegal immigrant at the time of their birth.

2. ****By Descent (Jus Sanguinis):**** - A person born outside India on or after January 26, 1950, but before December 10, 1992, is a citizen by descent if their father was a citizen of India at the time of their birth. - A person born outside India on or after December 10, 1992, is a citizen if either of their parents was a citizen of India at the time of their birth. - From December 3, 2004, a person born outside India shall not be a citizen unless their birth is registered at an Indian consulate within one year of the date of birth.

3. ****By Registration:**** - The Central Government may, on an application, register as a citizen of India any person who is not an illegal immigrant and belongs to certain categories. These categories include persons of Indian origin who have been residents in India for seven years before applying, persons of Indian origin who are residents of any country outside undivided India, persons married to a citizen of India and who are residents in India for seven years, and minor children of persons who are citizens of India.

4. ****By Naturalisation:**** - A foreigner can acquire citizenship by naturalisation if they have resided in India for twelve years (with some exceptions) and fulfill other qualifications specified in the Third Schedule of the Citizenship Act. The applicant must be of good character and have an adequate knowledge of a language specified in the Eighth Schedule to the Constitution.

****Termination of Citizenship:****

The Citizenship Act, 1955, also lays down three modes by which a citizen of India may lose their citizenship:

1. **Renunciation:** If an Indian citizen of full age and capacity makes a declaration renouncing their Indian citizenship, they cease to be a citizen. 2. **Termination:** An Indian citizen who knowingly or voluntarily acquires the citizenship of another country ceases to be a citizen of India. 3. **Deprivation:** The Central Government can deprive a citizen of their citizenship in cases of fraud, false representation, or being disloyal to the Constitution.

The Citizenship (Amendment) Act, 2019 (CAA):

The CAA, passed in December 2019, has been a subject of significant debate. It amends the Citizenship Act, 1955, to grant eligibility for Indian citizenship to illegal migrants who are Hindus, Sikhs, Buddhists, Jains, Parsis, or Christians from Afghanistan, Bangladesh, and Pakistan, and who entered India on or before December 31, 2014. The amendment has been controversial and has faced legal challenges regarding its constitutionality, particularly concerning the principles of secularism and equality enshrined in the Constitution.

In conclusion, the laws governing citizenship in India are a complex interplay of constitutional provisions and statutory enactments, reflecting the country's historical and social context. The principles of jus soli and jus sanguinis have been adapted over time, and the recent amendments have brought the legal framework into sharp focus, sparking a national conversation on the nature of citizenship and its relationship with the fundamental rights of individuals.

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